

FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB3500 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____ Amendment submitted by: Collin Duel _____

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

HOUSE BILL NO. 3500

By: Duel of the House

and

Howard of the Senate

FLOOR SUBSTITUTE

An Act relating to probate procedure; amending 58 O.S. 2021, Section 1252, as amended by Section 1, Chapter 101, O.S.L. 2023 (58 O.S. Supp. 2025, Section 1252), which relates to transfer-on-death deeds; removing nine-month requirement to accept property; providing procedure if transfer-on-death deed is not claimed within a certain time period after the record owner's death; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 58 O.S. 2021, Section 1252, as amended by Section 1, Chapter 101, O.S.L. 2023 (58 O.S. Supp. 2025, Section 1252), is amended to read as follows:

Section 1252. A. An interest in real estate may be titled in transfer-on-death form by recording a deed, signed by the record owner of the interest, designating a grantee beneficiary or beneficiaries of the interest. The deed shall transfer ownership of

1 the interest upon the death of the owner. A transfer-on-death deed
2 need not be supported by consideration. For purposes of the
3 Nontestamentary Transfer of Property Act, an "interest in real
4 estate" means any estate or interest in, over or under land,
5 including surface, minerals, structures and fixtures.

6 B. The signature, consent or agreement of or notice to a
7 grantee beneficiary or beneficiaries of a transfer-on-death deed
8 shall not be required for any purpose during the lifetime of the
9 record owner.

10 C. A designated grantee beneficiary may accept real estate
11 pursuant to a transfer-on-death deed only on behalf of himself,
12 herself, or a legal entity over which he or she has proper
13 authority. A beneficiary shall not accept such real estate on
14 behalf of another designated beneficiary.

15 D. Each designated grantee beneficiary wishing to accept real
16 estate pursuant to a transfer-on-death deed shall execute an
17 affidavit affirming:

- 18 1. Verification of the record owner's death;
19 2. Whether the record owner and the designated beneficiary were
20 married at the time of the record owner's death; and
21 3. A legal description of the real estate.

22 E. The grantee shall attach a copy of the record owner's death
23 certificate to the beneficiary affidavit. For a record owner's
24 death occurring on or after November 1, 2011, the beneficiary shall

1 record the affidavit and related documents with the office of the
2 county clerk where the real estate is located ~~within nine (9) months~~
3 ~~of the grantor's death, otherwise the interest in the property~~
4 ~~reverts to the deceased grantor's estate; provided, however, for a~~
5 ~~record owner's death occurring before November 1, 2011, such~~
6 ~~recording of the affidavit and related documents by the beneficiary~~
7 ~~shall not be subject to the nine-month time limitation.~~

8 Notwithstanding the provisions of Section 26 of Title 16 of the
9 Oklahoma Statutes, an affidavit properly sworn to before a notary
10 shall be received for record and recorded by the county clerk
11 without having been acknowledged and, when recorded, shall be
12 effective as if it had been acknowledged.

13 F. If no designated grantee beneficiary claims the real estate
14 within one (1) year of the death of the record owner, then the
15 property may be included in an estate of the record owner opened
16 pursuant to this title. Notice shall be provided to all named
17 beneficiaries of the deed in the manner required by the probate
18 procedure for a creditor of the estate. Any unclaimed interest at
19 the time of hearing for the final decree of probate of the estate of
20 the recorded owner shall be treated as forfeit and the unclaimed
21 interest shall pass pursuant to the provisions of the Estate
22 distribution.

23 G. A beneficiary affidavit recorded pursuant to this section
24 before November 1, 2023, in which one or more, but not all, named

1 beneficiaries of a transfer-on-death deed explicitly accepts the
2 interests being conveyed by the deed on behalf of all or some of the
3 beneficiaries named therein shall be effective to accept such
4 interests if executed by at least one of the named beneficiaries
5 accepting such interests.

6 SECTION 2. This act shall become effective November 1, 2026.

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